

Andhra Pradesh School Education Management (Community Participation) Rules, 1998

Source: <https://indiankanoon.org/doc/124354140/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Andhra Pradesh - Act

Andhra Pradesh School Education Management (Community Participation) Rules, 1998

ANDHRA PRADESH

India

Andhra Pradesh School Education Management (Community Participation) Rules, 1998

Rule ANDHRA-PRADESH-SCHOOL-EDUCATION-MANAGEMENT-COMMUNITY-PARTICIPATION-RULES-1998 of 1998

Published on 10 July 1998

Commenced on 10 July 1998

[This is the version of this document from 10 July 1998.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh School Education Management (Community Participation) Rules, 1998

Published vide Notification Andhra Pradesh Gazette, Extraordinary No. 21, Part 1, R.S., dated 10-7-1998. G.O.Ms.No. 214, Education (Prog. 2-2), dated 10-7-1998

Substituted for "School Education" by G.O. Ms. No. 95, Education (S.E. Prog. II-2), dated 2-12-2006.

In exercise of the powers conferred by Section 19 of the Andhra Pradesh School Education (Community Participation) Act, 1998 (Act No. 19 of 1998) the Governor of Andhra Pradesh Gazette hereby makes the following Rules in supersession of all earlier rules for the participation of parents of the students studying in the educational institutions which impart education from Pre - Primary stage upto the tenth class including Non Formal Education Centers, Adult

Education Centers or the Continuing Education Centers functioning under the control Government, Local Bodies or the Aided Institutions.

Chapter I

Preliminary

1.

These Rules may be called the Andhra Pradesh [School Education Management]

[Substituted for 'School Education' by G.O.Ms. No. 95, Education (S.E. Prog. II - 2), dated 2 - 12 - 2006.]

(Community Participation) Rules, 1998.

They shall come into force at once.

2.

Definitions

: - In these rules, unless the context otherwise requires ;

(1)

"Act" means the Andhra Pradesh School Education (Community Participation) Act, 1998.

(2)

"Form" means Form appended to these Rules.

(3)

"District Officer" means the District Educational Officer in respect of Formal Schools, the Deputy Director, Adult Education in case of Adult Education Centres and Continuing Education Centres, and the District Women and Child Welfare Officer in respect of Anganwadis, Balwadis and Early Childhood Education Centers.

(4)

"Inspecting Officer" means the Deputy Educational Officer in respect of High Schools, the Mandal Educational Officer in respect of Upper Primary and Primary Schools, [x x x]

[The Words 'the Project Officer in case of Non Formal Education Centers' omitted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2 - 12 - 2006.]

and the Project Officer/Mandal Literacy Officer in case of Adult Education Centres and Continuing Education Centres.

(5)

"Head Master" means, head functionary of any educational institution which may include the Headmaster of a Formal School or any other officer nominated by the concerned District Officer/Head of Department to carryout the duties of the Head Master in an educational institution.

(6)

(a)

"Election Officer" means the officer specified by the District Officer for the purpose of Election of School Committee and other Committee members.

(b)

All the words and expression used in these rules and not defined, shall have the same meaning as defined in the Andhra Pradesh School Education (Community Participation) Act, 1998 and Andhra Pradesh Education Act, 1982.

Chapter II

Parent - Teacher Association

3.

Constitution:

(1)

Parent - Teacher Association for each school shall be constituted by the Head Master concerned not later than the 30th June of each academic year.

(2)

The Inspecting Officer shall notify the date and time on the notice board of the school at which all students shall attend the school along with one of their parents :

Provided that in case of Adult Education Center or a Continuous Education Center, the presence of the parents is not necessary.

(3)

The Head Master shall then enter the names of the parents in the Register to be maintained in Form I, and should give

the membership slips in Form II to all the parents registered on payment of membership fee.

(4)

The Head Master shall then explain the powers, the functions, the role and the responsibility of the Parent Teacher Association as envisaged under the Act to all the parents.

4.

Registration:

(1)

The Mandal Education Officer concerned shall be the Registration authority for the Parent Teacher Associations of Primary schools in the district.

(2)

The Parishad Education Officer shall be the Registration authority for the Parent Teacher Associations of Zilla Parishad High Schools.

(3)

District Educational Officer shall be the Registration authority for the Parent Teacher Associations of Government schools and all other schools not covered by Rule 4(1) and Rule 4(2).

(4)

The Head - Master of the Institution shall furnish the details of the Parent Teacher Association of his school to the District Officer in Form III. The District Officer on receipt of the information from the Head of the Institution shall assign a Registration Number to the Parent Teacher Association.

5.

Membership Fee:

(1)

The parents of all the children studying in the school and the teachers working therein are members of the Parent Teacher Association. However only one of the parents has the right to vote.

(2)

Each member shall pay a membership fee as decided by the Parent Teacher Association, which shall not be less than Rs. 1/- per month to be collected once in 6 months in the month of June and December. The head Master shall indicate membership amount in the Form II. The School Committee shall be responsible for collection of the membership fee.

6.

Corpus Fund:

(1)

Every Parent - Teacher Association shall as far as possible raise corpus fund which in its opinion is required for the development of school infrastructure.

(2)

Head Master shall issue a receipt in Form IV on receipt of the amount.

(3)

It shall be lawful for the Parent Teacher Association to accept amounts from the persons other than the members of the Parent Teacher Association or organisations towards corpus fund.

7.

Ordinary Meetings:

(1)

The Head Master shall convene the first meeting by giving one week's notice to all parents, sent through their wards returned duly attested by parents :

Provided that no separate notice is required for the biannual meetings on last working day of June and December months.

(2)

20% of the total members shall constitute quorum for the Parent Teacher Association meetings.

(3)

The Parent Teacher Association, in each of its meetings, shall elect one of its members as the Chairperson to preside over the proceedings. The Head Master shall conduct election by show of hands.

(4)

Every Parent Teacher Association is responsible for preparation of a Plan for the effective performance of its functions provided in sub - section (3) of Section 4 of the Act.

(5)

The minutes of the meeting shall be recorded by the head Master in the Minutes Book in Form V and Signed by at least 10 (literate) members of the Parent Teacher Association and approved by the Chairman.

8.

Recall of Members and Chairman:

- [x x x]

[Rule 8' omitted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

School Committees

9.

Constitution of the School Management Committees:

(1)

School Management Committees shall be constituted as stipulated in sub - section (1) of Section 5 of the Act in order to perform its functions specified therein.

(2)

The District in - charge Minister shall nominate Four Parents of the .children for the purposes of Section 5 of the Act. Keeping in view their commitment, interest and experience in the matter of improving School Education.

(3)

School Management Committees shall review the functions of the school once in every month and shall take all such steps necessary to fulfill the goals and objectives set forth in. the Act.

Substituted by Ibid.

10.

Disqualification of Members:

- [x x x]

[Rule 10' omitted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

11.

Filling up of casual vacancies of School Management Committee:

- All vacancies that may arise in the School Management Committee shall be filled within thirty days from the date of arising of such vacancies and new members shall be nominated in the manner as specified in Rule 9.

Substituted by Ibid.

12.

Constitution of the School Education Fund:

(1)

All the unutilised funds, remaining with the. Local bodies/District. Educational Officers/Deputy Directors Adult EdUcatiOn/Collectors/Director of School - Education released by Government for various developmental schemes for,the School Education, as on the date. of coming. into. of these rules, and all the funds mentioned in Section 6(1) of the Act released or henceforth to be released for the development and maintenance the School, shall be transferred to the School Education Fund within 15 days from the said date. For the purpose of arriving at unutilised funds the annual statement of accounts of the previous year shall be the basis. The Chief Executive Officer in the case of Zilla Parishad,District Educational Officer, Deputy Director in the case of Adult Education Centres, the Collectors and Director of School Education in the case of Plan and Non - Plan Schemes are responsible for transfer of funds in the form of cheques or Demand Drafts. Executive Officer in the case of Gram Panchayat is responsible for transfer of funds.

Provided that the Government may, for reasons, to be recorded in writing exempt any category of such funds from transfer, to a specific School Committee or to all the School Committees in the State.

(2)

Non transfer of such funds by the above mentioned officers shall be considered as dereliction of duty and shall be liable !Or disciplinary action in accordance with the rules in force.

(3)

Whenever the funds are released by the Government and Local Bodies for the purpose of School and Adult Education arc credited to the District Education Fund, it shall be the responsibility of the Member - Convenor of the District

Education Committee to redistribute it directly to the School Committees in the manner specified in such communication, through Bank cheque within 15 days from the date of receipt of such funds. Any delay in the transfer of the funds shall be held against the Member Convenor concerned.

13.

Maintenance of Accounts of the School Education Fund:

(1)

There shall be a separate bank account in a nationalised bank or in the nearest post office for the operation of the School Education Fund.

(2)

The account shall be in a joint account to be operated by the Chairman of the School Committee and the Member - Convenor of the School Committee.

[Explanation: - For the purposes of this rule, School Education Committee means School Education Management Committee]

[Inserted. by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

.

(3)

There shall be a single register in which each category of funds released by the Government shall be entered and accounted separately by the Head Master. Receipts from all other sources shall also be maintained, entered in the same register.

(4)

All the payments from and out of the fund shall be made through cheques only.

(5)

All the funds as soon as they are received, shall be entered in the appropriate register and deposited in a single account by Head Master.

(6)

There shall be maintained a Petty Cash Book in Form VIII to record all the income and expenditure whenever incurred.

(7)

No expenditure shall be made without a resolution of the School Committee duly recorded in the Minutes Register in a meeting convened for the purpose.

(8)

All the expenditure made in the last meeting of the School Committee shall be placed before it in its subsequent meeting and approved.

(9)

All the expenditure incurred by the School Committee shall be subject to periodic audit by the Local Fund Audit Department. Head Master of the Institution/Member - Convenor shall place records and registers for audit before the Audit Party.

(10)

The Member - Convenor of the School Committee shall be responsible for the proper expenditure of the funds. In case, the School Committee passes resolution for the use of funds released by the Government in the manner not prescribed by the Government, the Member - Convenor shall send such resolution to the Inspecting Officer, instead of straight away acting by such resolution. The Inspecting Officer then shall clarify whether such resolution is in accordance with the Government Instructions. The clarification issued by the Inspecting Officer in consultation with the District Educational Officer shall be final and the School Committee shall abide by it.

(11)

For the purpose of these rules, the Chairman and Member Convenor of the School Committee operating the fund shall be Public Servants and are accountable to Government for its proper utilisation.

14.

Causing enquiries regarding utilisation of funds:

(1)

The District Collectors are authorised to cause enquiry by an appropriate authority on receipt of a specific complaint alleging non - utilisation or miss utilisation of the funds so released by the Government. It will be the responsibility of the

District Collector to see that frivolous or baseless complaints filed on personal grudges or due to factional feuds are totally filtered out before institution of such enquiry.

(2)

All such enquiries ordered by the District Collector may be completed within 30 days from the date of institution of such enquiry. The enquiry officer so appointed is responsible for timely completion of enquiry.

(3)

In case the complaints regarding the non - utilisation or mis - utilisation of the funds are proved in the said enquiry, the Collector shall send a report to the Government for the removal of such member under Section 18(2) of the Act apart from initiating action under appropriate laws in force.

(4)

The person so removed by the Government, shall suffer the disqualification permanently from contesting for any - of the posts specified in the Act.'

15.

Operation/Utilisation of the school education fund:

(1)

School Education Fund shall be used only for improvement of the school/benefit of the students of that school as ordained under the Act and Rules made thereunder.

(2)

Utilisation of fund for activities prohibited by the Act, or in these rules entails disciplinary action.

16.

Preparation of school budget:

(1)

As soon as may be, after the constitution of each School Committee, it shall prepare a School Budget for the following financial year. The budget shall clearly reflect the expected income in Education Fund from all sources including government funds as indicated by District Officers/Director of School Education/Government and the expenditure for meeting the requirements of the school during the academic year.

(2)

The budget so prepared shall be communicated to the Inspecting Officer.

(3)

The expenditure envisaged in Rule 15 shall be made only after the. Budget is prepared and, communicated.

(4)

Whenever contract appointments are made by the School Committee as envisaged under clause (d) of sub - section (3) of Section 5 of the Act, the persons so appointed shall not have any right to claim any regular appointment.

17.

-21.

[x x x]

['Rule 17 to 21' along with the heading 'Panchayat Education Committees' omitted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

Mandal Education Committee

22.

Constitution of Mandal Education Management Committee:

(1)

The Mandal Education Management Committee shall be constituted by the Mandal Parishad Development Officer within 30 days from the date of constitution of the School Management Committees in the Mandal.

(2)

The District in - charge Minister shall nominate eight chairpersons of the School Management Committees under the control of the Mandal Parishad concerned as per Section 9 of the Act.

(3)

All the Co - opted members as provided in sub - section (1) of Section 9 of the Act except the ones specified in Section 9(1)(v) and (vi) shall be selected by show of hands in the first meeting of the Mandal Education Management Committee, which shall be presided over by the Chairman.

(4)

In respect of the representative to be co - opted from the recognized teacher unions, that union which has the largest following in the Mandal shall be co - opted. In case of conflicting claims, the members present shall select one of the recognized unions to be represented by draw of lots on annual rotational basis. The members selected once may be excluded for the selection of subsequent years till the last union in the Mandal is represented.

(5)

All the decisions taken in each meeting shall be recorded in the minutes register by the Chairpersons, which shall be signed by other members present, in token of their approval.

Substituted by Ibid.

23.

Term and Filling up of casual vacancies of the Mandal Education Management Committee:

(1)

The term of members of the Mandal Education Management Committee shall be two years.

(2)

The vacancies arising in Mandal Education Management Committee shall be filled in within 60 days from the date of arising of such vacancy, which shall be the responsibility of the Headmaster concerned to intimate to the Mandal Education Officer of such vacancies.

(3)

All such vacancies shall be filled by following the procedure prescribed in Rule 22.

Substituted by Ibid.

24.

Functioning of [Mandal Education Management Committee]

[Substituted for 'Mandal Education Committee' by diversion of G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

:

(1)

The [Mandal Education Management Committee]

[Substituted for 'Mandal Education Committee' by diversion of G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

shall, review the performance and functioning of all the Pre Primary Schools, Primary Schools, U.Y. Schools, Non Formal Education Centres, Continuing Education Centers, with special reference to the availability of teachers except the High Schools.

(2)

The Committee shall plan for improving the infrastructure in the schools and the means for implementing such plan.

(3)

The Committee shall perform such other functions as may be entrusted by the Government from time to time.

(4)

Mandal Education Officer shall conduct a review of the functioning of schools on the last working day of the month and place the review report before the Committee in its next meeting.

25.

Constitution and Operation of Mandal Education Fund:

(1)

As soon as may be ; but not later than 15 days from the date of its constitution, each Mandal Education Committee shall open a bank account in any of the Nationalised banks for operation of the Mandal Education Fund. The account shall be jointly operated by the Vice - Chairman and the Member - Convenor i.e., Mandal Education Officer.

(2)

All funds allocated and provided in the Mandal Parishad Budget shall be drawn and credited to the fund every quarter.

(3)

The Mandal Education Committee members shall strive to get donations from the general public or from the philanthropic agencies for strengthening of the educational infrastructure and deposit the same in the account, after issuing a receipt in form.

(4)

The grant for the salaries of the teachers shall be utilised only for the purpose for which it is released. Any diversion of such a grant shall entail disciplinary action against the Mandal Education Officer and the Chairman of the Committee.

(5)

There shall be review of functioning of the schools by the Mandal Education Officer on the last working day of the month. The Mandal Education Officer shall place the review report before the Committee.

(6)

The Mandal Education Committee on receipt of funds shall distribute the same among the School Committees as per their requirement and as per Government directions if any in no circumstance shall the Mandal Education Committee expend such fund directly.

(7)

The Mandal Education Committee shall prepare an Annual Budget which shall be finalised as soon as it is convened or as the case may be in the month of July, each year whichever is earlier.

(8)

The fund shall not be used for purposes other than specified in the Act or in the rules made thereunder ; or entrusted to the Committee by the Government.

(9)

Utilisation of fund for activities not provided in the Act or in the rules calls for action as provided in Section 18(2) of the Act and such as provisions of Law as may be applicable.

(10)

All operations of the fund shall be made by way of Cheque or Demand Draft.

(11)

All the funds as soon as they are received, shall be entered in the appropriate register and deposited in a single account.

(12)

No distribution of funds shall be made without a resolution of the Mandal Education Committee duly recorded in the prescribed register by the Mandal Education Officer in a meeting convened for the purpose.

(13)

The Local Fund Audit Department shall periodically audit all the fund of the Mandal Education Committee.

(14)

It shall be the responsibility of the Member - Convenor of the Mandal Education Committee to make proper transfer of amounts from and out of the fund. In case, the Mandal Education Committee passes any resolution for the use of funds released by the Government, in the manner not authorised by the Government, the Member - Convenor shall send such resolution to the District Officer, instead of straight away acting upon such resolution. The District Officer, then, shall clarify whether such resolution is in accordance with the Government Instructions issued from time to time. The District Officer shall issue a clarification with prior consultation with the District Collector, and the clarification so issued shall be final and the Mandal Education Committee shall abide by it.

(15)

For the purpose of these rules the Vice - Chairman and Member - Convenor operating the fund shall be construed as Public Servants and are accountable to Government for its proper utilisation.

[Explanation: – For the purpose of this rule, Mandal Education Committee means Mandal Education Management Committee.]

[Inserted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

Municipal Education Committees

26.

Constitution and Functions of Municipal Education Management Committee:

(1)

The Municipal Commissioner shall constitute a Municipal Education Management Committee in the municipality within (30) days from the date of constitution of the School Management Committee.

(2)

The District in - charge Minister shall nominate the eight Chairpersons as per Section 11 of the Act.

(3)

All the co - opted members as provided in Section (11), of the Act except the ones specified in Section 11(1)(iv) and (vi) shall be selected by show of hands in the first meeting of Municipal Education Management Committee which shall be presided over by the Chairman of the Committee.

Note: – For this purpose the Municipal Commissioner shall place before the Municipal Education Management Committee the names of persons for consideration in each category. However, the final choice to select the members to be co - opted need not be confined to such list.

(4)

In respect of representative to be co - opted from the recognized teacher unions that union which has largest following in the Municipality/Corporation shall be co - opted. In case of conflicting claims, the members present shall select one of the recognized unions to be represented by draw of lots on annual rotational basis. The members selected once may be excluded from the selection for subsequent years, till last union in the Municipality/ Corporation is represented.

Substituted by Ibid.

27.

Term, and filling up of casual vacancies of Municipal Education Management Committee:

(1)

The term of the Municipal Education Management Committee shall be for two years.

(2)

Any vacancy arising in Municipal Education Management Committee shall be filled in within 30 days from the date of arising of such vacancy. It shall be the responsibility of the 'Headmasters concerned to intimate the Municipal Commissioner of such vacancies and the vacancies shall be filled by following the procedure prescribed in Rule 26.

Substituted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.

28.

Functioning of Municipal Education Committee:

(1)

The Municipal Education Committee shall review the performance and functioning of all the schools under its administrative control with special reference to the availability of teachers.

(2)

The Committee shall plan for improving the infrastructure in the schools and the means for implementing such plan.

(3)

The Committee shall perform such other functions as may be entrusted by the Government from time to time.

[Explanation: – For the purpose of this rule, the Municipal Education Committee means, Municipal Education Management Committee]

[Inserted by Ibid.]

.

29.

Constitution and operation of Municipal. Education Fund:

(1)

As soon as may be, but not later than 15 days from the date of its constitution, each Municipal Education Committee shall open a bank account in any of the Nationalised bank for operation of the Municipal Education Fund. The account shall be jointly operated by the Member - Convenor i.e., the Municipal Commissioner and a nominee of the District Collector.

(2)

All the grants - in - aid for education and grants for educational infrastructure in the Municipal schools shall be released directly by the District Educational Officer to the concerned Municipal Education Committee.

(3)

All funds allocated and provided for School Education in the Municipal Budget shall be drawn and credited to the Municipal Education Fund every quarter.

(4)

The Municipal Education Committee members shall strive to get donations from the general public or from the philanthropic agencies for strengthening of the educational infrastructure and deposit the same in the account after

issuing receipt in the Form IV.

(5)

The grant for the salaries of the teachers shall be utilised only for the purpose for which it is released. Any diversion of such a grant shall entail disciplinary action against the Municipal Commissioner and nominee of the District Collector.

(6)

There shall be a review meeting of all the teachers on the last working day of every month. After the review is completed, the review report shall be placed before the next meeting of the Municipal Education Committee.

(7)

The Municipal Education Committee on receipt of funds shall distribute the same among the School Committees as per their requirement and as per the Government directions. Under no circumstances the Municipal Education Committee shall incur expenditure on such fund directly.

(8)

The Municipal Education Committee shall prepare an Annual Action Plan, which shall be finalised as soon as it is convened or in the month of July each year whichever is earlier.

(9)

The fund shall not be used for purposes other than that specified in the Act or entrusted to the Committee by the Government.

(10)

Utilisation of fund for activities not provided in the Act or in the rules or in contravention of Government direction calls for action as provided for in Section 18(2) of the Act apart from action under relevant laws in force as may be applicable.

(11)

All operations of the fund shall be made by way of cheque/DD only.

(12)

All the funds as soon as they are received, shall be entered in the appropriate register and deposited in a single account.

(13)

No expenditure shall be made without a resolution of the Municipal Education Committee duly recorded in the Minutes Register.

(14)

The Local Fund Audit Department shall periodically audit all the expenditure made by the Municipal Education Committee.

(15)

It shall be the responsibility of the Member - Convenor of the Municipal Education Committee to ensure proper distribution of amounts from the fund. In case, if the Municipal Education Committee passes any resolution for the use of funds in the manner not authorised by the Government, the Member - Convenor shall send such resolution, to the District Collector instead of straight away acting by such resolution. The District Collector shall in consultation with the Government clarify whether such resolution is in accordance with the Government instructions issued in this regard. The clarification so issued by the District Collector, shall be final and shall be acted upon by the Municipal Education Committee.

[Explanation: – For this purpose of this rule, the Municipal Education Committee means, municipal Education Management Committee]

[Inserted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

.

32.

District Education Committees:

- Constitution and Functioning of District Education Committees: -

(1)

The District Education Committee shall be constituted by the Chief Executive Officer of the Zilla Parishad within 30 days from the scheduled date for constitution of the Mandal Education Committees.

(2)

[For selection of 10 Parent Members in the Committee the Chief Executive Officer shall convene a meeting of all the

Parent Members of the Mandal and the Municipal Education Committees and all the Chairmen of the School Committees of the schools under the control of the State Government, Government Aided private managements and local bodies within the Jurisdiction of such of the Municipalities where Municipal Education Committees could not be formed for want of Schools under the control of such Municipalities in the District by giving an advance notice of at least 10 (ten) days.]

[Substituted by G.O.Ms.No. 102, Education (Prog. II), dated 18.08.2001.]

(3)

In the meeting of the Parent Members of Mandal Education Committees and Municipal Education Committees so convened, the Chief Executive Officer shall invite from among them, nominations for 10 Parent Members for constituting the District Education Committee as specified in Section 13(1)(iii) of the Act ; and if necessary, conduct Elections in the meeting by show of hands or by secret Ballot in, the following manner :

(a)

the Election Officer shall invite proposals for the nomination separately under each category and write the names of the candidates proposed under each category on the Black Board and keep it at selected place, so that it will be visible to all the members in the Hall and give them one hour time for selection

(b)

in case of single nomination under any category the Election Officer may declare the candidate as "uncontested or unanimous" and declare elected accordingly ;

(c)

wherever there are more than required number of vacancies; Election Officer shall arrange for the Ballot boxes and ballot paper in the Form XI. The Ballot paper shall be signed by the Election Officer and two other official members of the District Education Committee as nominated by the District Collector ;

(d)

Each voter as per his choice, will write the names of 10 contestants ;

(e)

Depending on the number of parent members who have to, cast their votes, the timings for. the elections shall be decided, and announced, to all the members and also displayed on the Notice Board ;

(f)

Elections shall be conducted during the time specified in the presence of 2 Officers nominated by the District Collector ;

(g)

Each voter shall write the names of the ten contestants as in Form XI. Failure to write the names of contestants belonging to a particular category against that specified category in Form XI shall render those votes invalid.

(h)

the results shall be announced and displayed on the Notice Board by the Election Officer immediately thereafter ; and

(4)

After the elections of the 10 parent members in the manner provided in this rule is completed, the Chief Executive Officer shall convene the first meeting of the Committee with only the Official/Parent Members for selecting the co - opted members.

(5)

The quorum for such a meeting shall be 1/2 of the total number of Parent Members of the Mandal Education Committees within a district.

(6)

For selection of co - opted members, the Chief Executive Officer shall take action in advance as detailed below ; namely:

(a)

Prepare a list of Headmasters of Zilla Parishad, Government and Government Aided High Schools with good academic and administrative record and experience and provide the same to the members ;

(b)

prepare a list of Chairpersons of Mandal Education Committees in the district forco - opting one Mandal Education Committee Chairperson as a Member in the Committee ;

(c)

prepare a list of Chairmen of Panchayat Education Committees for co - opting one Panchayat Education Committee Chairmen as a Member on the Committee ;

(d)

In respect of the representative to be co - opted from the recognised teacher unions, that union which has the largest following in the District, shall be co - opted. In case of conflicting claims the members present shall select one of the recognised unions to be represented by draw of lots on annual rotational basis. The members selected once may be excluded in the selection for the subsequent years, till the last union in the District is represented.

(e)

prepare a list of Zilla Parishad Territorial Constituency members to be nominated on the Committee ; and

(f)

Obtain the name of one educationist, social activist or a voluntary organisation to be nominated by the District Collector.

(7)

For the purpose of co - opted members and for conducting elections the Chief Executive Officer shall act as the Election Officer and also is responsible for maintaining the reservations provided in Section 13(1)(iii) of the Act.

(8)

All the Co - opted members as specified in 13(1)(iv), (vi), (vii), (xii) of the Act shall be selected by show of hands in the first meeting of the District Education Committee presided over by the Chairman of the Committee.

(9)

All the decisions taken in the meeting shall be recorded in the Minutes Register and signed by atleast 2/3 of the members present before they leaves the meeting hall and approved by the Chairman of the District Education Committee.

[Explanation: – For the purpose of this rule, the District Educational Committee means, District Education Management Committee]

[Inserted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

.

33.

Term, Removal, Disqualification and Filling of casual vacancies of the parent members of the District Education Committee:

(1)

Parent members in the District Education Committee shall hold office for 2 years unless otherwise recalled/disqualified/or removed or resigned as per provisions of the Act or Rules framed thereunder.

(2)

Vacancies arising due to resignations, death or otherwise shall be filled within 30 days from the date of vacancy, it shall be the responsibility of the Heads of the Institutions/Panchayat Education Committees/Mandal Education Committees' Convenors concerned to intimate the vacancies to the Election Officer and getting the same filled within 30 days.

(3)

All the vacancies shall be filled as provided in Section 13 of the Act.

(4)

The District Education Committee members shall strive to get donations from the general Public or Philanthropists or from any other agencies for strengthening of educational infrastructure and deposit the same in the District Education Fund account.

(5)

The salary grant for the teachers shall be utilised only for the purpose for which it is released. Any diversion of such a grant shall entail the Chief Executive Officer and the Chairman of the Committee for disciplinary action.

(6)

The District Education Committee on receipt, of all funds other than the salary grants shall distribute the same among the Mandal Education Committees as per the requirement/annual plan. Under no circumstances the District Education Committee shall expend such funds directly.

(7)

Each District Education Committee shall prepare its annual budget in the beginning of the academic year ; and all the funds other than the grants released for salaries may be distributed accordingly.

(8)

The fund shall not be used for the purposes other than that specified in the Act or in the rules or entrusted to the Committee by the Government.

(9)

Utilisation of fund for activities not provided in the Act or in the rules or in contravention of Government directions calls for action under Section 18(2) of the Act apart from action under relevant laws in force as may be applicable.

(10)

All operations of fund shall be made by way of cheques only.

(11)

All the funds as soon as they are received, shall be entered in the appropriate register and deposited in a single account.

(12)

All the decisions for the distribution of funds shall be made only a resolution passed by the majority of members of the District Education Committee in a meeting duly convened and resolution recorded in the prescribed register by the Chief Executive Officer.

(13)

The Member - Convenor shall get all the expenditure or the transfer of funds periodically audited by the Local Fund Audit.

(14)

It shall be the responsibility of the Member - Convenor of the District Education Committee to make proper distribution of amounts from out of the fund. In case, the District Education Committee passes any resolutions for the use of funds released by the Government in the manner not authorised by the Government, the Member - Convenor shall send such resolution to the District Collector instead of straight away acting upon such resolution. The District Collector, then, shall in consultation with the Government clarify whether such resolution is in accordance with the Government instructions issued in that behalf. The clarification so issued by the District Collector, shall be final and shall be acted upon by the District Education Committee.

[Explanation: – For the purpose of this rule, the District Educational Committee means, District Education Management Committee]

[Inserted by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

.

34.

District Education Board:

(1)

The Government shall constitute the District Education Board for each district in the State by notification not later than the 30th September, once in two years.

(2)

The District Educational Officer, who is the Member - Convenor of the Board, shall prepare the lists of persons from the following categories, for the purpose of nomination namely: -

(i)

Educational experts in the district ;

(ii)

One representative from each of the Non - Governmental Organisations in the districts with proper record of social, educational service ;

(iii)

Outstanding teachers including the retired teachers and the Headmasters who have been the recipients of National Awards ;

(iv)

One Representative of the recognised teachers' unions ;

(v)

One Representative from each category of Management running schools, including the Minority management schools in the district with at least 5 years standing ; and

(vi)

To place all the above lists before the Chairman and the District Collector for the purpose of nomination under sub - section (1) of Section 15 of the Act.

(3)

After all the members are nominated by the Chairman, the Member - Convenor shall fix up a date for the meeting of the District Education Board Members. Member Convenor shall send intimations to all the member giving at least 7 days notice for the meeting.

(4)

The Board shall meet at least four times in a year and the quorum for such meeting shall be 1 /2 of the total number of members of the Board.

(5)

The term of the Board shall be for two years.

35.

Powers and Functions of District Education Board:

(1)

The Board shall function essentially as a technical body and shall help in planning the education system at the district level ; and shall perform the following functions it ;

(a)

Look after the needs of the Pre - Primary Education, Primary, Secondary Non Formal Education and Adult Education in the District;

(b)

Decide the priorities among the infrastructure proposals put forth or prepared by the District Education Committee ;

(c)

Plan in advance the training programmes of teachers in the district ;

(d)

review the implementation of the Annual School Calendar given by the Department of Education ;

(e)

Review the performance of the various schools in general and with reference to the VII and X class examination results in particular ;

(f)

review the functioning of Mandal Resource Centres and Teacher Centres, periodically.

(g)

Oversee the implementation of all Plan - Schemes like Audio - Visual Education, Vocational Education, Operation Black Board, [Sarva Shiksha Abhiyan]

[Substituted for 'District Primary Education Programme' by G.O. Ms. No. 95, Education (S.E. Prog. II - 2), dated 2-12-2006.]

etc., and suggest measures for their effective implementation.

(h)

review the conduct of all the examinations at the district level ; and

(i)

Plan, advise and extend necessary technical guidance to the District Educational Officers and to the Mandal Education Officers on all the academic matters.

36.

Constitution of State Advisory Board of School Education:

(1)

The Government by notification shall constitute a State Advisory Board of School Education before 31st October. The term of the Board shall be for a period of 3 years.

(2)

The Commissioner & Director of School Education who is the Member - - Convenor of State Advisory Board of School Education shall nominate all categories of the members under Section 16(1) of the Act and shall fix up a date for the first meeting of the Board with the prior approval of the Chairman.

(3)

He shall convene the meeting with an advance intimation of at least 15 days.

(4)

The chairperson of the Board shall co-opt one Chairperson of School Education Committees as specified under Section 16(1)(xvii) of the Act.

(5)

The Member Convenor shall place before the Chairperson the list of the parent members of the District Education Committees for co-option to the State Advisory Board.

37.

Powers and Functions of State Advisory Board of School Education:

(1)

It shall be the apex body to advise the Government on all the matters relating to the quality of education in general and of instruction, curriculum, syllabus and all other academic matters in particular.

(2)

It shall meet once in 6 months every year.

(3)

Review the achievement of Universal Elementary Education periodically and suggest necessary plan of action in furtherance of its objectives.

(4)

Review the overall achievement of Minimum Levels of learning in the schools of different levels.

(5)

Ensure co-ordination at various levels and among different departments dealing with the matters relating to School Education.

(6)

Ensure the maintenance of uniform standards among the institutions under School Education in the State.

(7)

Suggest the policy relating to the pre-service and in-service Teacher training.

(8)

Advise the Government on the matters relating to the Teacher Recruitment, Manpower Planning and Human Resource Development for School Education.

38.

Power of the Government to give directions:

- Subject to approval of Government, the Director of School Education, may, give such directions for the effective implementation of the Act and the Rules made thereunder.

39.

Transitional Provision:

- Wherever the elections to the Gram Panchayats, Mandal Praja Parishad, the Zilla Parishad, the Municipalities, the Municipal Corporation as the case may be were not held ; or for any reason the office of the President, Sarpanch Gram Panchayat, the office of the President of Mandal Praja Parishad, the office of the Chairman, Zilla Parishad, the Chairman of a Municipal Council, the Mayor of a Municipal Corporation ; or of a Ward member of a Gram Panchayat, or of a MPPTC member or of a ZPPTC Member of a Councillor of a Municipality or a Municipal Corporation, as the case may be, is vacant or falls vacant due to death, resignation, or otherwise, then notwithstanding anything contained in these rules, the person officiating in such vacancy shall continue to officiate such as exercise. All such powers and perform all such duties as are exercisable in the circumstances till the vacancies are filled by regular incumbents.

Form I

[See Rule 3(3)]

(Register to be maintained by the Head of the Institutions)

Sl. No.

Name of the parent

Name of the Child

Relationship

Class in which the child is studying

Form II

[See Rule 3(3)]

(Membership slip to be issued by the Head of the Institution to the Parents)

Sri/Smt. _____ is F/o., M/o., G/o. _____ Studying in _____ class Section of this school is a member of the Parent Teacher Association and has paid membership fee of Rs. _____ up to _____

Date :

Signature and seal of the Head of the Institution

Form III

[See Rule 4]

(To be submitted by the Head of the Institution _____)

From :The Head Master/Head

Mistress _____ School, _____

ToThe _____ (as

specified in Rule 4) _____

Sir/Madam,

Sub: - P.T.A. - Submission of P.T.A. details - Regarding.

I submit the following particulars of the Parent Teacher Association of our school _____ School, _____ Mandal, _____ District.

(1)

Total No. of Parent Members

(2)

No. of Parent Members present in the meeting

(3)

No. of teachers in the school

(4)

Name of the Head of Institution

I request that the Association be registered and a registration number be allotted to the Association.

Signature with office seal

Form IV

[See Rules 5(2) & 6(2)]

(Receipt for donations)

Received an amount of Rs. _____ (Rupees _____ (only) from Sri/Smt. _____ Address _____ Towards his/her contribution to the Corpus fund of _____ School, _____ Village, _____ Mandal, _____ District.

The same has been entered into the concerned Accounts Register.

Signature of the head of the Institution with seal

Form V

[See Rule 7(5)]

(Minutes of the meeting to be recorded by the Head Master)

Minutes of the Parent Teacher Association meeting held on _____ (Date)

The Parent Teacher Association has unanimously resolved as follows:

Resolutions :

1.

2.

3.

4.

Signatures of the members present :

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.

Chairperson

Signature of Head Master

Form VI

[See Rule 8(6)]

(To notify the removal of the Chairperson/Parent Member(s) of the School Committee/Panchayat Education Committee/Mandal Education Committee/District Education Committee)

Notification

Office of the

Station : _____

(District Officer)

Date : _____

Sub: - Extraordinary meeting of the Parent Teacher Association/School Committee for Recall of Chairperson/Parent Member - Notification - Issued.

Ref: - Minutes copy of the extraordinary meeting of _____ committee, furnished by the Headmaster and Member Convenor of _____ Committee, dated _____

In the extraordinary meeting of the Parent Teacher Association of _____ School/ _____ Panchayat/ _____ Mandal held on _____, it was resolved to recall Sri/Smt. _____ Chairperson of School Committee/the Parent Member of the School Committee.

Basing on the copy of the minutes of the above meeting it is hereby notified, that

1. Sri/Smt. _____ who is a Chairperson of the aforesaid School Committee/Parent member(s) of the said committee is recalled and therefore stands disqualified and consequently ceases to be the member/Chairperson of the _____ School Committee/Panchayat Education Committee/Mandal Education Committee/District Education Committee with immediate effect

Signature and seal of the District Officer

Form VII

[See Rule 9(6)]

Declaration of Result of Election under Rule 9(6) of the Rules

In accordance with Rule 9 of Andhra Pradesh School Education (Community Participation) Rules, 1998 the elections were conducted for electing A Parent Member/Chairman of School Committee/Panchayat Education Committee/Mandal Education Committee/Municipal Education Committee/District Education Committee on _____ (Date).

I declare that the following candidate has been elected as _____ Committee.

Name

Address

Signature of the Election Officer

Designation

Form VIII

[See Rule 13(6)]

(Petty Cash Book of _____ Committee)

Sl. No.

Date

Opening Balance

Receipts

Expenditure

Closing Balance

Remarks

Form IX

[See Rule 13(5)]

(Inward Register of Cheques/DD)

Sl. No.

Date of receipt

From whom received

Name of the bank, Cheque/DD No. & Date

Amount

On what account to be credited

Date of dispatch to the bank

Date of adjustment

Treasury Officer's initials

Remarks

Form X

[See Sec. 7(1)(iv) of Andhra Pradesh School Education (Community Participation) Act and Rule 17(6)]

Certificate of Life Membership

Member - Convenor,

Station : _____

_____ Committee,

Date : _____

_____ Mandal,

_____ District.

This is to certify that Sri/Smt. _____ S/o. D/o. _____ address _____ Has donated Rs. _____) To the _____ Committee, _____ Village, _____ Mandal of _____ District consequent to which he/she becomes life member of aforesaid Committee.

Signature of Member Convenor

With Office Seal

_____ Committee,

_____ Mandal,

_____ District.

Form XI

[See Rule 32(3)(e)]

Ballot Paper

Serial No :

Election for the office of Parent Members of District Education Committee of _____ District

Category : General/Women/Scheduled Castes/Scheduled Tribes/Minority

Serial No. of the Voter : _____ Signature _____

Election for the office of Parent Members of District Education Committee of _____ District

Serial No. _____

1.

Woman Member _____

2.

Woman Member _____

3.

Woman Member _____

4.

Woman Member _____

5.

Woman Member _____

6. S.C. /S.T. _____

7. Minority Member _____

8. Others _____

9. Others _____

10. Others _____

Date of Poll :

Place of Poll :

Signature of the Election Officer

Related AI tags, queries and research notes

Translation